

Court No. - 3

Case :- WRIT - C No. - 12677 of 2022

Petitioner :- Deleep Singh

Respondent :- District Magistrate And 2 Others

Counsel for Petitioner :- Arun Mishra

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard Sri Arun Mishra, learned counsel for the petitioner, learned Standing Counsel for the State-respondent and Sri Rajesh Kumar Tripathi, Advocate holding brief of Sri Narendra Kumar Tirwari, learned counsel for the respondent no.3.

This writ petition has been filed praying for the following relief:-

"(i) Issue a writ of certiorari quashing recovery certificate/writ of demand (Annexure 1) having been issued without authority and against the dictate of Section 56 of Electricity Act, 2003 and Clause 8.2 of U.P. Electricity Supply Code, 2005 issued on 14.03.2022."

Sri Rajesh Kumar Tripathi, learned counsel for the respondent no.3 states on instructions that petitioner may submit an objection under Para 6.8 of U.P. Electricity Supplies Code, 2005 within four weeks from today before the respondent no.3, which shall be considered and decided by a reasoned and speaking order within a time bound period, after affording reasonable opportunity of hearing to him.

In view of the statement made by learned counsel for the respondent no. 3 and without expressing any opinion on merits of the case of the petitioner, this writ petition is ***disposed of*** giving liberty to the petitioner to file an objection before the respondent no.3 within four weeks from today along with a certified copy of this order raising all objections as may be available to him under law. In the event such an objection is filed, it shall be decided by the respondent no.3 by a reasoned and speaking order, expeditiously, preferably within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

Order Date :- 11.5.2022

T.S.